

SENATE No. 2522

The Commonwealth of Massachusetts

PRESENTED BY:

Cindy F. Friedman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act strengthening health care protections in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Cindy F. Friedman</i>	<i>Fourth Middlesex</i>	
<i>Andrea Joy Campbell</i>	<i>Attorney General</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>4/14/2025</i>
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>4/14/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>4/14/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/17/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>5/19/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>5/20/2025</i>
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>5/20/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>5/27/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>5/28/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>5/29/2025</i>

SENATE No. 2522

By Ms. Friedman, a petition (accompanied by bill, Senate, No. 2522) (subject to Joint Rule 12) of Cindy F. Friedman, Andrea Joy Campbell, Attorney General , Joanne M. Comerford, Julian Cyr and other members of the General Court for legislation to strengthen health care protections in the Commonwealth. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act strengthening health care protections in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 7 of chapter 4 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting at the end of the twenty-sixth clause the
3 following subsection:-

4 (w) the name, home address, personal email address, telephone number, and any other
5 personal information of an individual engaged in the provision, facilitation, or promotion of
6 reproductive health care services or gender-affirming health care services, as defined in section
7 11I½ of chapter 12.

8 SECTION 2. Section 11I ½ of chapter 12 of the General Laws, as appearing in the 2022
9 Official Edition, is hereby amended by inserting after subsection (f) the following subsections:-

10 (g) Notwithstanding any general or special law to the contrary and except as required by
11 federal law, no state or local agency of the commonwealth or officer or employee or any other

person acting on behalf of a state or local agency of the commonwealth, while acting under the color of law, shall cooperate with or provide information or assistance to any federal law enforcement agency or other agency, or any other state or local law enforcement agency or other agency, or any individual or quasi-law enforcement agent, or expend or use time, money, facilities, property, equipment, personnel, or other resources in relation to an investigation or inquiry into services constituting legally-protected health care activity, as defined in section 11I½ of this chapter 12, if such services would be lawful as provided if they occurred entirely in the commonwealth.

(h) Evidence relating to the involvement of an individual in one or more legally-protected health care activity, as defined in section 11I ½ of this chapter, shall not be offered against such individual as evidence that such party has engaged in any wrongdoing, whether civil, criminal, professional, or otherwise by virtue individual who received of such services not being physically present in the commonwealth when they received such services. Nothing in this section shall prevent a party from offering such evidence in a proceeding that (i) sounds in tort or contract; (ii) is actionable, in an equivalent or similar manner, under the laws of the commonwealth; and (iii) was brought by the patient who received reproductive health care services or gender-affirming health care services, or the patient's legal representative.

(i) The attorney general may bring a civil action for injunctive or other equitable relief to enforce the provisions of this section.

SECTION 3. Section 12 of chapter 12C of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after subsection (b) the following subsection:-

(c) Except as required by federal law, the center shall not provide access to any data, including de-identified data or any other data that would allow the identification of health information of a patient or provider in response to an out-of-state or federal inquiry or investigation into services constituting legally protected health care activity, as defined in section 11I½ of chapter 12.

SECTION 4. Section 10B of chapter 66 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 20, the words “persons providing or training in family planning services,” and inserting in place thereof the following words:- persons engaged in the provision, facilitation, or promotion of reproductive health care services or gender-affirming health care services, as defined in section 11I½ of chapter 12,

SECTION 5. Section 75 of chapter 31 of the General Laws, as appearing in the 2022 Official Edition, as amended by chapter 238 of the acts of 2024, is hereby further amended by adding the following paragraph:-

Nothing in this section shall be construed to permit civil service employees to furnish information to, or cooperate with, law enforcement authorities in contravention of Section 11I½ of Chapter 12, Section 63 of Chapter 147.

SECTION 6. Chapter 93 of the General Laws is hereby amended by adding after section 114 the following section:-

Section 115. Out-of-state warrants or subpoenas for legally protected health care information

(a) For the purposes of this section, the following terms shall have the following meanings:

(1) “Electronic communication” means any transfer of signs, signals, writing, images, sounds, data, or intelligence of any nature transmitted in whole or in part by a wire, radio, electromagnetic, photoelectronic or photo-optical system; provided, however, such term shall not include: (i) any communication made through a tone only paging device; (ii) any communication made through a tracking device consisting of an electronic or mechanical device which permits the tracking of the movement of a person or object; or (iii) any communication that is disseminated by the sender through a method of transmission that is configured so that such communication is readily accessible to the public.

(2) “Electronic communication services” means any service which provides to users thereof the ability to send or receive wire or electronic communications.

(3) “Prohibited violation” means any civil or criminal offense defined under the laws of another state that creates civil or criminal liability for legally protected health care activity as defined in section 11I ½ of chapter 12.

(b) A business entity that operates in Massachusetts and provides electronic communication services or remote computing services to Massachusetts residents or business entities organized under the laws of the commonwealth of Massachusetts may not:

(1) Comply with a subpoena, warrant, other civil or criminal legal process for records, information, or assistance that the business entity knows relates to a Massachusetts resident, Massachusetts health care provider, or Massachusetts business entity in connection with legally protected health care activity, as defined in section 11I ½ of chapter 12, except as required by a

valid federal law, unless the subpoena, warrant, or other civil or criminal legal process includes, or is accompanied by, an attestation, made under penalty of perjury, stating that the subpoena, warrant, or other civil or criminal legal process does not seek documents, information, or testimony relating to an investigation into, or the enforcement of, another state's law that asserts criminal or civil liability for the provision, receipt, attempted provision or receipt, assistance in the provision or receipt, or attempted assistance in the provision or receipt of legally- protected health care activity that is lawful in the commonwealth of Massachusetts.

(2) Any false attestation submitted under this section is subject to a statutory penalty of not more than \$50,000 per violation. Submission of such attestation subjects the attester to the jurisdiction of the courts of Massachusetts for any suit, penalty, or damages arising out of a false attestation under this section.

(3) The attorney general may commence a civil action to compel any business entity that operates in Massachusetts and that provides electronic communications services or remote computing services to Massachusetts residents to comply with the provisions of this section.

SECTION 7. Section 21 of chapter 94C of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the first paragraph the following paragraph:-

Except as required by federal law, the label for a controlled substance prescribed for "reproductive health care services" or "gender-affirming health care services," as defined in section 11I½ of chapter 12, shall, at the request of the provider, include the name of the prescribing health care practice instead of the name of the practitioner.

SECTION 8. Section 22 of said chapter 94C, as so appearing, is hereby amended by adding the following after subsection (c) the following subsection:-

(d) Notwithstanding subsection (b) and to the extent allowable under federal law, the label for a controlled substance prescribed for “reproductive health care services” or “gender-affirming health care services,” as defined in section 11I½ of chapter 12, may include the name of the dispensing health care practice instead of the name of the dispensing practitioner.

SECTION 9. Section 24A of said chapter 94C, as so appearing, is hereby amended by adding the following sentence at the end of subsection (a)(1):-

Notwithstanding the other provisions of this section, medications specifically prescribed for reproductive health care services and gender-affirming health care services as defined in section 11I ½ of chapter 12, shall be excluded from this electronic monitoring program unless reporting of such is determined by the department to be necessary to protect the public health.

SECTION 10. Section 24A of said chapter 94C, as so appearing, is hereby further amended by adding the following subsection:-

(n) Notwithstanding any general or special law to the contrary, except as required by federal law, the department shall not provide disaggregated data or individually identifiable data from the prescription drug monitoring program to a federal law enforcement agency or other agency, or any other state or local law enforcement agency or other agency, or any private citizen or entity or quasi-law enforcement agent in relation to an investigation or inquiry into reproductive health care services or gender-affirming health care services, as defined in section 11I½ of chapter 12, if such services would be lawful as provided if they occurred entirely in the commonwealth. This section shall not be construed to apply to prescription drugs for usages,

118 including off-label usages, that are unrelated to reproductive health care services or gender-
119 affirming health care services.

120 SECTION 11. Chapter 111 of the General Laws is hereby amended by adding after
121 section 51 the following section:-

122 Section 51¼. Emergency medical treatment

123 (a) For purposes of this section the following words shall have the following meaning,
124 unless the context clearly requires otherwise:-

125 “Emergency medical condition”, a medical condition manifesting itself by acute
126 symptoms of sufficient severity such that the absence of immediate medical attention could
127 reasonably be expected to result in: (i) placing the health of the applicant in serious jeopardy; (ii)
128 serious impairment of bodily functions; or (iii) serious dysfunction of any bodily organ or part.
129 Such conditions include, but are not limited to, when a pregnant patient is experiencing ectopic
130 pregnancy, complications of pregnancy loss or abortion, risks to future fertility, preterm
131 premature rupture of membranes (PPROM), placental abruption or bleeding from placenta previa
132 or emergent hypertensive disorders, such as preeclampsia and eclampsia, and peripartum
133 cardiomyopathy.

134 “Stabilizing treatment”, includes abortion when abortion is necessary to resolve the
135 applicant’s injury or emergency medical condition.

136 (b) All acute-care hospitals licensed under section 51G of chapter 111, during all
137 operating hours of an emergency department or a satellite emergency facility as defined in
138 section 51½ of chapter 111, shall provide hospital emergency services to any applicant who

139 applies for the same in case of injury or an emergency medical condition. For purposes of this
140 section, “applicant” includes any person who presents at the hospital or who is brought to a
141 hospital by ambulance or specialized emergency medical services vehicle as defined in section 1
142 of chapter 111C. Hospitals shall furnish hospital emergency services including but not limited to,
143 medical screening by qualified medical personnel to reach with reasonable clinical confidence a
144 determination of whether an applicant has an emergency medical condition, and the provision of
145 necessary stabilizing treatment for applicants with an emergency medical condition. Hospitals
146 shall further establish and maintain policies and procedures for the provision of hospital
147 emergency services, including for an applicant’s refusal to consent, restricting transfers until the
148 applicant is stabilized, appropriate transfers of applicants, nondiscrimination, no delay in
149 examination or treatment, and whistleblower protections.

150 (c) The department shall have the authority to promulgate such regulations as may be
151 necessary to implement the provisions of this section.

152 (d) The attorney general may bring a civil action for injunctive or other equitable relief to
153 enforce the provisions of this section. In any action brought by the attorney general under this
154 section, the court may also award a civil penalty of not more than ten thousand dollars for each
155 violation.

156 SECTION 12. Said chapter 111 is hereby amended by adding after section 70H the
157 following section:-

158 Section 70I. Prohibiting disclosure of legally protected health care information

159 (a) For the purposes of this section, the term “business” shall mean:

(1) Any business organized for the purpose of maintaining medical information in order to make an individual's medical information available to an individual or to a provider of health care at the request of the individual or a provider of health care, for purposes of allowing the individual to manage the individual's medical information, or for the diagnosis and treatment of the individual; or

(2) Any business that offers medical recordkeeping, electronic health record, or electronic medical record services, including, but not limited to software or hardware to consumers that makes an individual's medical information available to an individual or a provider of health care at the request of the individual or a provider of health care, for purposes of allowing the individual to manage the individual's medical information, or for the diagnosis, treatment, or management of a medical condition of the individual; or

(3) Any business that is licensed by the department of public health or the department of mental health to provide medical, clinical, behavioral, or health services; or

(4) Any business that offers a digital service to a consumer for the purpose of allowing the individual to manage the individual's reproductive or sexual health information, or for the diagnosis, treatment, or management of a reproductive or sexual health medical condition of the individual.

(b) A business, as described in subsection (a), that electronically stores or maintains medical information related to the provision of abortion or abortion-related health care services, miscarriage management, in vitro fertilization, and gender-affirming health care services, including, but not limited to, on an electronic health record system or electronic medical record system, on behalf of a provider of health care, health care insurance plan, pharmaceutical

182 company, contractor, or employer, shall develop capabilities, policies and procedures to enable,
183 and shall enable, all of the following:

184 (1) Limit user access privileges to information systems that contain medical information
185 related to abortion or abortion-related health care services, miscarriage management, in vitro
186 fertilization, and gender-affirming health care services only to those persons who are authorized
187 in writing by the patient to access specified medical information.

188 (2) Prevent the disclosure, access, transfer, transmission, or processing of medical
189 information related to abortion or abortion-related health care services, miscarriage management,
190 in vitro fertilization, or gender-affirming health care services to persons and entities outside of
191 this commonwealth, absent the express written consent of the patient, independent of any other
192 agreement, that specifically authorizes the disclosure, access, transfer, transmission, or
193 processing of medical information to the named persons or entities outside of this
194 commonwealth.

195 (3) Automatically disable access by individuals and entities outside this commonwealth
196 to segregated medical information related to abortion or abortion-related health care services,
197 miscarriage management, in vitro fertilization, or gender-affirming health care services, absent
198 the express written consent of the patient that specifically authorizes access by named persons or
199 entities outside of this commonwealth to such segregated medical information

200 (c) The department of public health shall have the authority to promulgate such
201 regulations for licensed providers and entities as may be necessary to implement the provisions
202 of this section.

(d) The department of public health shall promulgate a consent form that meets the requirements of this section and require its use by all licensed health care providers in the commonwealth.

(e) The attorney general may bring a civil action for injunctive or other equitable relief to enforce the provisions of this section. In any action brought by the attorney general under this section, the court may also award a civil penalty of not more than five thousand dollars for each violation.

SECTION 13. Section 12Q of chapter 112 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following paragraph:-

The commissioner of public health shall not, pursuant to this section, collect, maintain, use, disclose, or disseminate disaggregated surveillance data or individually identifiable surveillance data on abortions performed in the commonwealth. The name, home address, personal email address, and telephone number of individuals engaged in the provision, facilitation, or promotion of reproductive health care services, as defined in section 11I½ of chapter 12, shall not be considered a public record under chapter 66 of the general laws.

SECTION 14. Said chapter 112 is hereby further amended by adding after section 12Q the following section:-

Section 12Q½. Collection of data on gender-affirming health care

The commissioner of public health shall not collect, maintain, or use individually identifiable data on gender-affirming health care services provided in the commonwealth, as defined in section 11I ½ of chapter 12, except as authorized by law, and shall not disclose, or

disseminate disaggregated data or individually identifiable surveillance data on gender-affirming health care services, as defined in section 11I ½ of chapter 12, provided in the commonwealth. The name, home address, personal email address, and telephone number of individuals engaged in the provision, facilitation, or promotion of gender-affirming health care services, as defined in section 11I½ of chapter 12, shall not be considered a public record under chapter 66 of the general laws.

SECTION 15. Section 61 of said chapter 112, as so appearing, is hereby further amended by adding the following paragraphs:-

Notwithstanding any general or special law to the contrary, no person shall be subject to discipline by the boards, including the revocation, suspension or cancellation of the certificate of registration or license or reprimand, censure or monetary fine, for providing or assisting in the provision of reproductive health care services or gender-affirming health care services, as those terms are defined in section 11I½ of chapter 12, or for any judgment, discipline or other sanction arising from such health care services if the services as provided would have been lawful and consistent with the standard of conduct for the designated profession if they occurred entirely in the commonwealth.

The boards shall not make available for public dissemination on an individual's profile the record of any criminal conviction or charge for a felony or serious misdemeanor, final disciplinary action by a licensing board in another state or a malpractice court judgment, arbitration award or settlement that resulted from providing or assisting in the provision of reproductive health care services or gender-affirming health care services or for any judgment, discipline or other sanction arising from such health care services if the services as provided

would have been lawful and consistent with the scope and standards of practice for the designated profession if they occurred entirely in the commonwealth.

The boards shall not take adverse action on an application for registration or licensure based on a criminal or civil action or disciplinary action by a licensing board of another state or a medical malpractice claim in another state arising from such health care services that, as provided, would have been lawful and consistent with the standard of conduct for the designated profession if they occurred entirely in the commonwealth.

SECTION 16. Section 63 of chapter 147 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out subsection (b) and inserting in place thereof the following subsections:-

(b) Notwithstanding any general or special law to the contrary and except as required by federal law, no state or local law enforcement agency or officer or employee or any other person acting on behalf of a state or local law enforcement agency of the commonwealth, while acting under color of law, shall provide information or assistance to a federal law enforcement agency or any other state's agency, including a law enforcement agency, or any private citizen or quasi-law enforcement agent, or expend or use time, money, facilities, property, equipment, personnel, or other resources in relation to an investigation or inquiry into services constituting legally-protected health care activity, as defined in section 11I½ of chapter 12, if such services would be lawful as provided if they occurred entirely in the commonwealth.

(c) The attorney general may bring a civil action for injunctive or other equitable relief to enforce the provisions of this section.

SECTION 17. Chapter 175 of the General Laws is hereby amended by adding after section 193U the following section:-

Section 193V. Discrimination on the basis of legally protected health care activity

No insurance company offering for sale any policy of insurance shall discriminate against a nonprofit charitable organization, including those corporations qualified under 26 USC section 501(c)(3), or adjust or otherwise calculate such nonprofit charitable organization's risk classification or premium charges in the provision of any form of liability insurance covering negligence, wrongful acts, errors or omissions of the organization and its respective members, directors and officers, on the basis that, applying the definitions of section 11I½ of chapter 12: (i) the organization offers reproductive health care services or gender-affirming health care services; (ii) the organization engages in legally-protected health care activity; or (iii) the organization is or may be the subject of abusive litigation.

SECTION 18. Chapter 209B of the General Laws is hereby amended by adding after section 14 the following section:-

Section 15. Other state bans on gender-affirming health care for minors

(a) A law of a jurisdiction outside the commonwealth that authorizes a child to be removed from the care or custody parent or guardian based on the parent or guardian allowing their child to receive gender-affirming care health care services, as defined in section 11I½ of chapter 12, or that bans the provision of gender-affirming care, shall not provide a basis to alter custody, parenting, time, or visitation, or to make a finding of abuse, neglect or maltreatment, in a case pending in a court in the commonwealth, unless conduct under such law would constitute abuse, neglect or maltreatment under the laws of the commonwealth.

(b) No court in the commonwealth shall admit or consider a finding of abuse, neglect or maltreatment based on the parent or guardian allowing their child to receive or seek gender-affirming health care services, or a finding that a parent or guardian is criminally, civilly, or otherwise liable for violating another's state's law that bans the provision of gender-affirming health care, as defined in section 11I ½ of chapter 12, as evidence in any proceeding with respect to that parent or guardian and any of their children, unless such conduct would constitute abuse, neglect or maltreatment under the laws of the commonwealth.

SECTION 19. Chapter 221 of the General Laws is hereby amended by adding after section 40 the following section:-

Section 40A. Removal or discipline of attorneys representing individuals engaged in reproductive or gender-affirming health care

Notwithstanding any general or special law or rule or regulation to the contrary, no attorney licensed in the commonwealth may be removed or otherwise subject to discipline, including the revocation, suspension or cancellation of the attorney's license or reprimand, censure, or monetary fine, for advising or representing a client or prospective client related to the provision of reproductive health care services or gender-affirming health care services, as defined in section 11I ½ of chapter 12, if the sole reason for such removal or discipline is that: (i) the client offered, provided, or received reproductive health care services or gender-affirming health care services that are unlawful in another state, or (ii) another state's laws creates actual or potential liability for the reproductive health care services or gender-affirming health care services offered, provided, or received by the client, or (iii) the attorney is subject to actual or potential liability, or removal or discipline, in another jurisdiction based on the reproductive

311 health care services or gender-affirming health care services offered, provided, or received by the
312 client, so long as the attorney's conduct otherwise complies with the laws of the commonwealth
313 and meets the standards set forth in the Rules of Professional Responsibility promulgated by the
314 Supreme Judicial Court.

315 SECTION 20. Subsection (b) of section 70I of chapter 111, as amended by section 10,
316 shall be implemented by businesses no later than July 1, 2026.